



CHAPTER 1.

An Act for the better regulation of Doctor Blythe's A.D. 1922.
Benefaction to Clare College Cambridge.
[4th August 1922.]

WHEREAS the late Samuel Blythe otherwise Blithe otherwise Blyth Doctor of Divinity (in this Act called "the testator") Master or Keeper of the College of Clare Hall now known as Clare College in the University of Cambridge by his will dated the eighteenth day of April one thousand seven hundred and thirteen gave to the Master Fellows and Scholars of the said College (in this Act called "the College") certain property for the purpose of purchasing out of the income thereof perpetual advowsons and livings of the yearly value of one hundred and fifty pounds or within ten pounds over or under such yearly value in the most wholesome and healthful part of any country or county in England and directed that such advowsons as often as they became void should be offered to members of the foundation as therein mentioned that thereby a fellowship thereof might become vacant and other persons might be presented thereto for the benefit of posterity :

And whereas at the time of the testator's death which occurred not long after the date of his said will there were twenty fellows of the College in addition to the Master and there were only five livings held by the College :

And whereas at the time of the passing of the Act next mentioned the said benefaction was represented by ten advowsons and certain real and leasehold estates

A.D. 1922. in the county of Suffolk and a sum of one thousand five hundred pounds bank stock which had been purchased by the College :

And whereas by an Act 3 George III. chapter xxxv. (in this Act called "the Act of 1763") passed in the year one thousand seven hundred and sixty-three and intituled "An Act to enable the Master Fellows and
" Scholars of the College of Clare Hall in the University
" of Cambridge to alter and vary the Benefaction of
" Dr. Blyth and to appropriate the same for the benefit
" of the said College in the augmentation of the Vicarages
" of Everton with Tetworth and Great Gransden in
" the Counties of Bedford and Huntingdon" the College were empowered to sell the said bank stock and to invest the net proceeds in the purchase of land as therein provided and the income derived from the property representing the said benefaction was directed subject to necessary outgoings as therein provided to be applied as to fifteen pounds per annum in perpetual augmentation of the said vicarage of Great Gransden and subject thereto in perpetual augmentation in equal proportions of the said vicarages of Everton-with-Tetworth and Great Gransden :

And whereas by an Act 6 George IV. chapter lxx. (in this Act called "the Act of 1825") passed in the year one thousand eight hundred and twenty-five and intituled "An Act to repeal an Act in the third year of King
" George the Third to enable the Master Fellows and
" Scholars of Clare Hall in the University of Cambridge
" to vary the Benefaction of Doctor Blyth" the Act of 1763 was repealed and certain provisions were made as to presentations to the said vicarages of Everton-with-Tetworth and Great Gransden and for the payment out of the income of the said benefaction to the vicars of such sums as with the value of the glebe lands and tithes of such vicarages would make up two hundred pounds a year and for the application of the residue of such income as directed by the testator's said will :

And whereas at the date of the Act next mentioned the College had purchased out of the surplus income of the said benefaction two further advowsons making twelve advowsons so purchased in addition to the five advowsons held by the College before the testator's

death while the number of the Fellows of the said College A.D. 1922.
had been reduced to seventeen : ———

And whereas by an Act 29 & 30 Victoria chapter 2 (in this Act called "the Act of 1866") passed in the year one thousand eight hundred and sixty-six and intituled "An Act for the better regulation of Doctor Blythe's Benefaction to Clare College Cambridge" the short title whereof is "Clare College (Blythe's Benefaction) Act 1866" subject and without prejudice to the augmentation in pursuance of the Act of 1825 of the said vicarages of Everton-with-Tetworth and Great Gransden respectively the College were empowered to apply the income of the said benefaction and the accumulations thereof (a) in payment of certain costs (b) in the perpetual augmentation of all or any of the vicarages of Litlington and Duxford Cambridgeshire and Wrawby-cum-Brigg Lincolnshire and the said vicarages of Everton-with-Tetworth and Great Gransden (being five of the College livings in the Act of 1866 and in this Act referred to as "the five vicarages") (c) in making to the College compensation as therein provided in respect of such parts as the College from time to time might appropriate for the perpetual augmentation of the five vicarages or any of them of the rentcharges in lieu of tithe and farms specified in the second schedule to the Act of 1866 wherein the yearly values of the vicarial and rectorial rentcharges in lieu of tithe and glebe and farms of the five vicarages were set forth (d) in accordance with the testator's said will And the College were empowered (sections 3 and 4) from time to time if and when they thought fit to augment any of the five vicarages by the appropriation for the perpetual augmentation thereof of all or any part of the rectorial rentcharge in lieu of tithe and farms of the respective parishes specified in the said second schedule and (section 5) as a method of augmentation to re-unite any of the said vicarages with the rectory of the parish and (section 6) in case of any such augmentation to make to themselves compensation in that behalf of appropriating and taking to their own use a competent portion of the income or accumulations of income arising from the said benefaction the amount to be determined by the Ecclesiastical Commissioners for England and Wales

A.D. 1922. as therein provided And it was further enacted (section 8)
 — as follows :—

“ With respect to each of the vicarages of Everton with Tetworth and Great Gransden if and when the respective vicarage is perpetually augmented under this Act so as to be of the full yearly value of two hundred pounds or upwards the provisions of the Act of 1825 with respect to the augmentation thereof shall cease and if and when both of those vicarages are perpetually augmented under this Act to that amount then that Act is by this Act repealed.”

And whereas since the passing of the Act of 1866 no further advowsons have been purchased but the College have expended out of the said benefaction the sum of two thousand two hundred pounds in the perpetual augmentation of the said vicarage of Litlington and the sum of two thousand pounds in uniting the livings of Saint Peter's Rectory and Saint John's Vicarage in Duxford so that the advowson of Duxford now consists of both such livings and the sum of four thousand pounds in the perpetual augmentation of the said vicarage of Wrawby-cum-Brigg with the result that the present value of these livings (based on a return made in the year one thousand nine hundred and twenty-one to the Royal Commission on the Universities of Oxford and Cambridge) is as follows :—

	£	s.	d.	
Litlington - - -	283	0	0	net and a house
Duxford - - -	570	0	0	„ „
Wrawby-cum-Brigg -	323	10	0	„ . „

And whereas the said benefaction after allowing for the expenditure above referred to is now represented in addition to the said twelve advowsons acquired by means thereof by land shop property and investments producing a net annual income of about nine hundred pounds :

And whereas the respective net yearly values of the said livings of Everton-cum-Tetworth and Great Gransden without assistance from the Blythe Benefaction are respectively two hundred and forty-two pounds and one hundred and twenty-seven pounds in addition in each case to a house :

And whereas the College have complied with the provisions of the Act of 1825 as to the yearly payments to be made to the vicars of Everton-cum-Tetworth and Great Gransden out of the income of the said benefaction : A.D. 1922.

And whereas the College desire that when the objects of the said benefaction have been altered and extended as provided by this Act the said livings of Everton-cum-Tetworth and Great Gransden shall be perpetually augmented out of the said benefaction to such an amount that each of them shall be of the full yearly value of two hundred and fifty pounds in addition to a house :

And whereas under the statutes now governing the College there are fifteen Fellows in addition to the Master :

And whereas the existing Fellows (except one who is in holy orders and holds a life fellowship under former statutes and one who holds a fellowship under a statute of 1921 for three years) hold under the statutes of 1882 and amending statutes which provide that subject to certain exceptions in cases of Fellows occupying certain offices in the University or the College every Fellow shall vacate his fellowship at the expiration of a period not exceeding five years and eleven months from the time of his election :

And whereas of the seventeen livings belonging to the College only three are held by ex-Fellows of the College none of whom by accepting a benefice created a vacancy in a Fellowship and at the present time there are only two Fellows in holy orders :

And whereas no Fellow holding under the statutes of 1882 has vacated his fellowship as the result of the provisions of the testator's said will and neither of the two Fellows who are in holy orders could be compelled to vacate his fellowship by the offer of a benefice by the College :

And whereas the object of the testator in founding the said benefaction was to promote a circulation among the Fellows for the good of the College by providing livings to which they could retire an object which for many years after the testator's death was fulfilled to the great benefit of the College but having regard to

A.D. 1922. — modern conditions has become obsolete and there is no use or advantage in the College continuing to purchase or hold advowsons :

And whereas the said benefaction was founded for the good and benefit of the College and the College now desire and it is expedient that subject to the said perpetual augmentation of the said livings of Everton-cum-Tetworth and Great Gransden the objects of the said benefaction shall be altered and extended in manner hereinafter appearing :

And whereas it is expedient that the College be empowered to sell and dispose of the advowsons held subject to the said benefaction the livings being often difficult to fill and of little or no use to the College :

And whereas the objects of this Act cannot be attained without the authority of Parliament.

Wherefore Your Majesty's most dutiful and loyal subjects the Master Fellows and Scholars of Clare College in the University of Cambridge do most humbly beseech Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may for all purposes be cited as Clare College Cambridge (Blythe's Benefaction) Act 1922.

Augmenta-
tion of
livings of
Everton-
cum-
Tetworth
and Great
Gransden.

2. As soon as may be the College shall take all proper steps to cause each of the said livings of Everton-cum-Tetworth and Great Gransden to be perpetually augmented out of the said benefaction so as to be of the full annual value of two hundred and fifty pounds in addition to a house.

Application
of income
of bene-
faction.

3. Subject to the provisions of the last preceding section of this Act the said benefaction and the income and the accumulations of the income thereof may be applied by the College at their discretion for all or any one or more of the following objects :—

- (a) The foundation of additional fellowships or scholarships or studentships ;
- (b) The establishment or augmentation of a pension fund for the benefit of ex-Masters Fellows or ex-Fellows of the College ;

(c) The promotion of the efficiency of the College as an educational institution; A.D. 1922.

(d) The augmentation of the endowment of livings in the patronage of the College to such an amount as may be by law allowed.

4. The College may sell all or any of the advowsons forming part of the said benefaction subject to the laws regulating the sale of ecclesiastical benefices and in manner provided by the Universities and College Estates Acts 1858 to 1880 and the Universities and College Estates Act 1898 for the sale of college property but so that the net proceeds of any such sale and the investments thereof shall be considered and applied as part of the funds of the said benefaction and shall not be subject to the operation of any provisions in the statutes of the College relating to advowsons. Power of sale of advowsons.

5. The College may if they see fit grant and transfer without consideration all or any of the said advowsons to the bishop of the diocese within which they are situate and the bishop to whom any such grant is made may accept such grant and hold any advowsons so granted as part of the ecclesiastical patronage annexed to his See without any licence in mortmain. Power to grant advowsons to bishop of diocese.

6. The Act of 1825 and the Act of 1866 are hereby repealed. Repeal of Acts of 1825 and 1866.

7. The costs charges and expenses of and incident to the preparation obtaining and passing of this Act or otherwise in relation thereto shall be raised and paid by the College out of the said benefaction. Costs of Act.

8. Saving always to the King's most Excellent Majesty His heirs and successors and to every other person and body politic and corporate and their respective heirs successors executors administrators and assigns (other than and except only the several persons who by this Act are expressly excepted out of this general saving) all such estate right title interest claim and demand whatsoever in to upon and with respect to the Blythe Estates and the income and accumulations of income thereof and any and every part thereof as they every or any of them respectively had before the passing of this Act or could or might have or enjoy in case this Act were not passed. General saving.

A.D. 1922.

Persons
bound by
Act.

9. Provided that the persons following and their respective heirs executors administrators and assigns are excepted out of the general saving in this Act contained and accordingly are the only persons bound by this Act (that is to say) :—

- (1) The Master Fellows and Scholars of Clare College in the University of Cambridge;
- (2) The vicars from time to time of the five vicarages respectively including the rector of the rectory of Duxford Saint Peter with which the vicarage of Duxford Saint John has been united.

Act as
printed by
King's
Printers to
be evidence.

10. This Act shall not be a public Act but shall be printed by the several printers to the King's most Excellent Majesty duly authorised to print the statutes of the United Kingdom and a copy thereof so printed by any of them shall be admitted as evidence thereof by all judges justices and others.

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